

Makhan @ Makkhan Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 6 March 2020 · Writ-C No. 8633 of 2020 · **Writ disposed; petitioner relegated to EE under Clause 6.14.**

HEADNOTE

A consumer whose supply had been disconnected for unpaid electricity dues, and against whom a recovery citation for Rs.2,97,053 plus other charges had issued, accepted the entire liability and sought only installment facility. The Division Bench disposed of the writ by directing the petitioner to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005. If approached within one week, the Executive Engineer was to consider the claim and pass an appropriate order within three weeks in accordance with law. Coercive action on the recovery citation was stayed for four weeks, subject to that decision.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected for non-payment of dues. A recovery citation dated 10 January 2020 was issued for Rs.2,97,053 plus other charges. Before the High Court he accepted the entire liability and asked only that installments be fixed. Counsel for respondent no.2 and the Standing Counsel for the State were heard. The Court did not examine the demand on merits and left the installment claim to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for unpaid electricity dues

HOLDING

Where a consumer accepts unpaid electricity dues in full and seeks only that installments be fixed, the writ court will not itself grant the facility but will relegate him to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005. If the consumer approaches within the time fixed, the Executive Engineer shall consider the claim and pass an appropriate order in accordance with law; coercive recovery on a pending citation may be stayed for a short period pending that decision. ¶ 4-5

PRINCIPLE TAGS

installment-payment-clause-6.14 The petitioner accepted the entire electricity-bill liability and sought only installment facility; the Court directed him to the Executive Engineer under Clause 6.14 rather than fixing installments itself, with a short stay of coercive recovery. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER, AND ON WHAT TERMS, INSTALLMENTS SHOULD BE GRANTED UNDER CLAUSE 6.14

Left to the Executive Engineer to consider and decide in accordance with law. ¶ 4